

COMMISSION IMPLEMENTING REGULATION (EU) 2015/341

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COMMISSION IMPLEMENTING REGULATION (EU) 2015/341

of 20 February 2015

laying down detailed rules for implementing Regulation (EU) No 223/2014 of the European Parliament and of the Council as regards the models for submission of certain information to the Commission

THE EUROPEAN COMMISSION,

Having regard to the Treaty on the Functioning of the European Union,

Having regard to Regulation (EU) No 223/2014 of the European Parliament and of the Council of 11 March 2014 (1) on the Fund for European Aid to the Most Deprived, and in particular Articles 35(7), 41(4) and 49(3) thereof,

Whereas:

(1)

Commission Implementing Regulation (EU) No 463/2014 (2) lays down provisions necessary for the submission of programmes. In order to ensure implementation of the programmes financed by the Fund for European Aid to the Most Deprived (the 'FEAD'), it is necessary to lay down further provisions for the application of Regulation (EU) No 223/2014. To facilitate a comprehensive view and the access to those provisions, those provisions should be set out in one implementing act.

(2)

With a view to ensuring increased efficiency and transparency in the implementation of programmes financed by the FEAD, the model for payment applications and the model for the accounts for operational programmes should be established.

(3)

For the same purpose, the model for describing the functions and procedures in place in the managing authority and, where appropriate, the certifying authority, and the model for the report and opinion of the independent audit body should be established. They should set out the technical characteristics of each field in the electronic data exchange system. Since those models will form the basis for developing the electronic data exchange system referred to in Article 30(4) of Regulation (EU) No 223/2014, they should also set out the manner in which data on eligible expenditure will be entered into this system for electronic information exchange.

(4)

This Regulation should respect the fundamental rights and observe the principles recognised by the Charter of Fundamental Rights of the European Union, and notably the right to protection of personal data. This Regulation should therefore be applied in accordance with these rights and principles. Concerning personal data processed by Member States, Directive 95/46/EC of the European Parliament and of the Council (3) applies. Concerning the processing of personal data by the Union institutions and bodies and

the free movement of such data, Regulation (EC) No 45/2001 of the European Parliament and of the Council (4) applies.

(5)

The measures provided for in this Regulation are in accordance with the opinion of the Committee for the Fund for European Aid to the Most Deprived,

HAS ADOPTED THIS REGULATION:

Article 1

Model for the description of the functions and procedures in place for the managing authority and the certifying authority

1. The description of the functions and procedures in place for the managing authority and, where appropriate, the certifying authority shall be drawn up in accordance with the model set out in Annex I to this Regulation.
2. Where a common system applies to several operational programmes co-financed by the FEAD, a single description of the functions and procedures referred to in paragraph 1 may be drawn up.

Article 2

Model for the report of the independent audit body

1. The audit report of the independent audit body referred to in Article 35(2) of Regulation (EU) No 223/2014 shall be drawn up in accordance with the model set out in Annex II to this Regulation.
2. Where a common system applies to several operational programmes co-financed by the FEAD, a single audit report referred to in paragraph 1 may be drawn up.

Article 3

Model for opinion of the independent audit body

1. The opinion of the independent audit body referred to in Article 35(2) of Regulation (EU) No 223/2014 shall be drawn up in accordance with the model set out in Annex III to this Regulation.
2. Where a common system applies to several operational programmes co-financed by the FEAD, a single opinion referred to in paragraph 1 may be drawn up.

Article 4

Model for the payment application

The payment application referred to in Article 41(4) of Regulation (EU) No 223/2014 shall be drawn up in accordance with the model set out in Annex IV to this Regulation.

Article 5

Model for the accounts

The accounts referred to in Article 49(1) of Regulation (EU) No 223/2014 shall be submitted to the Commission in accordance with the model set out in Annex V to this Regulation.

Article 6

Entry into force

This Regulation shall enter into force on the twentieth day following that of its publication in the Official Journal of the European Union.

This Regulation shall be binding in its entirety and directly applicable in all Member States.

Done at Brussels, 20 February 2015.